

IN THE FRANKLIN COUNTY MUNICIPAL COURT

FILED

24 OCT 16 AM 8:49

FRANKLIN COUNTY
LOCAL JUDICIAL BRANCH

[Redacted]
Plaintiff,
vs.

[Redacted]

And All Other Occupants,
Defendants.

COMPLAINT IN FORCIBLE ENTRY AND DETAINER

1. Plaintiff is the Landlord of the subject premises and manages and/or leases said premises as defined by 5321.01. The subject of this Complaint is a residence located at [Redacted] Defendants are the Lessee.

2. Defendant has the obligation to pay rent to Plaintiff by virtue of their Landlord and Tenant relationship as defined by 5321.01 on or before the first day of the month. Defendant(s) have their breached their obligation to pay rent in violation of RC 1923.02.

3. On [Redacted] the Defendants had not paid to Plaintiff the rental payment due for the month of [Redacted] Therefore, Plaintiff gave the Defendants the notice required by Section 1923.04 of the Ohio Revised Code to vacate the premises.

4. Plaintiff has fully performed all of its obligations under the parties' Landlord and Tenant Relationship. Defendant(s), by reason of refusal to remit payment of rent to the Plaintiff, are now in breach of 1923.02, and by such default, Plaintiff is now entitled to immediate possession of the premises. Defendants have not surrendered the premises to the Plaintiff and now unlawfully and by force detain from Plaintiff the premises.

5. Plaintiff further states that insofar as it can, with reasonable diligence, ascertain, Defendant(s) is/are not currently engaged in the military in the United States of America or in the State of Ohio.

WHEREFORE, Plaintiff demands judgment for restitution of the premises, and court costs arising under the lease agreement, the law, or the statutes made and provided for such cases.

[Redacted Signature Line]

NOTICE TO LEAVE THE PREMISES

To: _____ and all other
occupants:

We wish you to leave the following described premises now in your occupation,
situated in the city of _____ and described as follows:

together with the lot of land which said unit is situated.

Grounds: Non-Payment of Rent
Balance: _____

Your compliance with this notice on or before the third day from the date listed below (Saturdays, Sundays, and judicial holidays are excluded) will prevent any legal measure being taken by us to obtain possession, including an eviction filing fee of \$250.00.

YOU ARE BEING ASKED TO LEAVE THE PREMISES. IF YOU DO NOT LEAVE, AN EVICTION ACTION MAY BE INITIATED AGAINST YOU. IF YOU ARE IN DOUBT REGARDING YOUR LEGAL RIGHTS AND OBLIGATIONS AS A TENANT, IT IS RECOMMENDED THAT YOU SEEK LEGAL ASSISTANCE.

Agent for the Landlord

Date: _____

Business Entity/Managing Agent:

Landlord's Address:

Property Manager:
Property Manager

APARTMENT LEASE CONTRACT



Form of Contract: _____ This is a binding document, read carefully before signing.

(Include the Lease Contract in this box)

Moving In - General Information

1. **WARRANTY.** This Contract represents the entire agreement between you and the Landlord. It is subject to the terms and conditions of the Lease Contract and the rules and regulations of the Community.

2. **SECURITY DEPOSIT.** Unless notified by you in writing, the Landlord will require a security deposit of \$_____ at the time of move-in. The security deposit will be held in a separate account and will be returned to you within 30 days of the end of the lease term.

3. **KEYS AND ACCESS.** You will be provided with _____ key(s) to the apartment. You are responsible for the safekeeping of the keys. If you lose a key, you must notify the Landlord immediately and pay a fee of \$_____ for a replacement key.

4. **NOTICE AND TERMINATION.** This lease is for a term of _____ months, beginning on _____ and ending on _____. If you wish to terminate the lease before the end of the term, you must provide written notice to the Landlord at least _____ days before the termination date.

5. **RENT AND CHARGES.** Rent is due on the _____ day of each month. Rent is \$_____ per month. Late fees are \$_____ per day after the due date. Other charges include _____.

6. **UTILITIES AND SERVICES.** Utilities to be provided by the Landlord include _____ and _____.

7. **INSURANCE.** You are responsible for obtaining adequate insurance coverage for your personal property and liability.

8. **MAINTENANCE AND REPAIRS.** You are responsible for reporting any maintenance or repair needs to the Landlord as soon as possible. The Landlord will make reasonable efforts to address the issue within a reasonable time frame.

9. **ALTERATIONS.** You are prohibited from making any alterations to the apartment without the prior written consent of the Landlord.

10. **ASSIGNMENT AND SUBLETTING.** You are prohibited from assigning or subletting the apartment without the prior written consent of the Landlord.

11. **ENTRANCE AND EGRESS.** You are responsible for ensuring that the entrance and egress to the apartment are clear and unobstructed.

12. **NEIGHBORHOOD CONDUCT.** You are expected to conduct yourself in a respectful and lawful manner within the neighborhood.

13. **FORCE MAJEURE.** In the event of a natural disaster or other event beyond your control, the Landlord may suspend the lease obligations.

14. **SEVERABILITY.** If any provision of this Contract is found to be unenforceable, the remaining provisions shall remain in effect.

15. **ENTIRE AGREEMENT.** This Contract represents the entire agreement between you and the Landlord.

16. **WITNESSES.** The signatures of the Landlord and tenant are required for this Contract to be valid.

17. **DATE.** This Contract is dated _____.

18. **SIGNATURES.** The Landlord and tenant must sign this Contract in the presence of each other.

19. **COPIES.** You will receive a copy of this Contract and the Landlord will retain a copy.

20. **AMENDMENTS.** Any amendments to this Contract must be in writing and signed by both parties.

21. **GOVERNING LAW.** This Contract is governed by the laws of the State of _____.

22. **DISPUTE RESOLUTION.** Any disputes arising from this Contract shall be resolved through arbitration.

23. **ASSIGNMENT OF RIGHTS.** The Landlord assigns the right to enforce this Contract to the National Apartment Association.

24. **FORCE MAJEURE.** In the event of a natural disaster or other event beyond your control, the Landlord may suspend the lease obligations.

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NEW CIVIL CASE FILING COVERSHEET

LORI M TYACK, CLERK OF COURTS
FRANKLIN COUNTY MUNICIPAL COURT

THIS COVER SHEET MUST BE COMPLETED FOR ALL NEW CASE FILINGS

(Please check all that apply)

CASE TYPE:

☐	"E"	Personal Injury/Property Damage	\$111.00
☐	"F"	Contracts/Notes/Accounts	\$111.00
☐	"F"	Cognovit	\$111.00
☐	"H"	12 Point / FRA Non-Compliance Petitions	\$111.00
☐	"H"	BMV Reinstatement Plan	\$ 20.00
☐	"H"	Certificate of Judgment	\$ 84.00
☐	"H"	Declaratory Judgment	\$111.00
☐	"I"	Small Claims	\$ 66.00
☐	"P"	Parking Violations Bureau Petition	\$111.00
☐	"CV_"	Change of Venue	\$ 97.00
☐	"EV_"	Civil Environmental	\$111.00

SERVICE TYPE:

☐	Certified Mail	\$10.00
☐	Bailiff Service	\$25.00 (Franklin County Residents ONLY. Instructions must be filled out.)
☐	FedEx	\$15.00 Coming Soon – Effective Date To Be Determined
☐	Process Server	(This option must include additional \$3.00 & Approval Entry)
☐	Waiver of Notification of Failure	(Form CV-81 MUST be completed)

EVICCTIONS

CASE TYPE:

☒	"G"	F.E.D. 1 Cause of Action (EVICITION ONLY)	\$123.00
☐	"G"	F.E.D. 2 Causes of Action (EVICITION WITH MONEY)	\$160.00

NOTE: THE ABOVE FILING FEES INCLUDE ORDINARY MAIL SERVICE PLUS ONE OF THE CHOICES BELOW FOR UP TO 3 DEFENDANTS AND/OR ADDRESSES. REQUESTS FOR ADDITIONAL DEFENDANTS AND/OR ADDRESSES WILL BE CHARGED ADDITIONAL SERVICE FEES BASED ON THE CURRENT COURT FEE SCHEDULE.

ORDINARY MAIL SERVICE WITH ADDITIONAL

	<u>1 Cause</u>	<u>2 Cause</u>
☒ Bailiff Service (Instructions must be filled out.)	\$123.00	\$160.00
☐ Certified Mail (Must be signed for to perfect service)	\$123.00	\$160.00
☐ Process Server (Must include Approval Entry)	\$126.00	\$163.00

Signature of Filing Party: _____

Phone # : _____

Defendant Phone # (if available): _____

**Provision of phone number may assist the court if problems are encountered*

PLEASE PRESENT COMPLETED FORM WITH ORIGINAL & SERVICE COPIES TO CASHIER. MAKE CHECKS OR MONEY ORDERS PAYABLE TO FRANKLIN COUNTY MUNICIPAL COURT, or FCMC. ANY RETURNED CHECKS WILL BE CHARGED A \$25.00, RETURNED CHECK FEE.